

## Texas Alcohol-Related Laws for Adults

### Implied Consent Laws for Adults

The implied consent for adults is similar to that of minors.

Like the minor, an adult implies their consent to take one or more breath or blood specimen for analysis if they are arrested for operating a motor vehicle or watercraft in a public place while intoxicated, or if they are an adult up to 21 years of age and there is any detectable or noticeable amount of alcohol in their system while operating a motor vehicle in a public place as deemed by an officer. The breath or blood specimen determines if alcohol is present in their body and will identify the amount of alcohol in their system, as well as the presence of any other controlled substances or drugs.

A person who refuses to give a blood or breath specimen for analysis will have their driver license suspended for 180 days or up to 730 days for subsequent offenses. If a person submits to a blood or breath specimen and the results show a BAC of 0.08 or greater, their driver license may be suspended for 90 days or up to 365 days for subsequent offenses. Anyone with a BAC of 0.08 or more is considered intoxicated.

**Table 31: Penalties for DWI and DUI of Alcohol or Drugs-Adults**

| Offense                     | Fine           | Confinement                       | Driver License Suspension |
|-----------------------------|----------------|-----------------------------------|---------------------------|
| 1st offense                 | Up to \$2,000  | 72 hours to 180 days in jail      | 90 days to 365 days       |
| 2nd offense                 | Up to \$4,000  | 30 days to 1 year in jail         | 180 days to 2 years       |
| 3rd and subsequent offenses | Up to \$10,000 | 2 to 10 years in TDCJ             | 180 days to 2 years       |
| DWI with passenger under 15 | Up to \$10,000 | 180 days to 2 years in state jail | 90 days to 2 years        |
| Intoxication assault        | Up to \$10,000 | 2 to 10 years in TDCJ             | 90 days to 2 years        |
| Intoxication manslaughter   | Up to \$10,000 | 2 to 20 years in TDCJ             | 180 days to 2 years       |

### Know Your Legal Limit

The legal limit in Texas is 0.08 BAC or any amount which results in the loss of normal use of mental or physical faculties. The information provided in the *Alcohol and Driving. Why Take the Risk?* table below is only a guide and is based on calculated averages. Alcohol tolerance may vary by individual. Food intake, medications, health, gender and psychological conditions are also influential factors, which affect the rate of alcohol absorption.

Drivers are encouraged to take drug and alcohol awareness courses to become better educated about the effects and consequences of drugs and alcohol. Insurance companies may provide liability insurance discounts to drivers who complete drug and alcohol awareness courses.

**Table 32: Alcohol and Driving. Why Take the Risk?**

| Drinks | Body Weight in Pounds |     |     |     |     |     |     |     | Influenced          |
|--------|-----------------------|-----|-----|-----|-----|-----|-----|-----|---------------------|
|        | 100                   | 120 | 140 | 160 | 180 | 200 | 220 | 240 |                     |
| 1      | .04                   | .03 | .03 | .02 | .02 | .02 | .02 | .02 | Possibly            |
| 2      | .06                   | .06 | .05 | .05 | .04 | .04 | .03 | .03 |                     |
| 3      | .11                   | .09 | .08 | .07 | .06 | .06 | .05 | .05 | Impaired            |
| 4      | .15                   | .12 | .11 | .09 | .08 | .08 | .07 | .06 |                     |
| 5      | .19                   | .16 | .13 | .12 | .11 | .09 | .09 | .08 | Legally intoxicated |
| 6      | .23                   | .19 | .16 | .14 | .13 | .11 | .10 | .09 |                     |
| 7      | .26                   | .22 | .19 | .16 | .15 | .13 | .12 | .11 |                     |
| 8      | .30                   | .25 | .21 | .19 | .17 | .15 | .14 | .13 |                     |
| 9      | .34                   | .28 | .24 | .21 | .19 | .17 | .15 | .14 |                     |
| 10     | .38                   | .31 | .27 | .23 | .21 | .19 | .17 | .16 |                     |

A drink may include a 12 ounce can of beer, a mixed drink with 1.5 ounces of liquor or a 5 ounce glass of wine. They all contain approximately the same amount of alcohol.